

ing remains to be done, but in the latter case the substance of the agreement on one side, viz. the payment of the purchase-money, is still to be performed.

17. Where donee incurs expense in respect of the property.

— Though a settlement be voluntary at the time, and the legal estate do not pass, yet if the donee with the knowledge and sanction of the donor incur expense in respect of the property upon the faith of the gift, the donee is no longer regarded as a volunteer, but, in the character of purchaser, may call for a conveyance of the legal estate (*c*).

18. Voluntary settlement by way of trust not revocable by settlor.

— If a complete voluntary settlement, whether with or without transmutation of possession, be once executed, it cannot be revoked by a subsequent *voluntary* settlement (*d*), and the circumstance that the legal estate which was vested in the trustee becomes afterwards by some accident revested in the settlor is immaterial, as he will take it as a trustee (*e*). But if the voluntary settlement be in trust for the settlor for life, and then in trust for others, but subject to such debts as the settlor may leave, the settlor may in effect nullify the settlement by creating new debts (*f*).

19. Fraud. — A voluntary settlement, though complete on the face of it, may be set aside in equity, where obtained by undue influence (*g*), or where it was not intended to take effect in the events which have actually happened, and was therefore executed under a mistake (*h*).

20. But in case of lands may be defeated by a sale. — A *voluntary settlement of land* by way of trust, perfectly created, is liable, under 27 Eliz. cap. 4, like a settlement of the legal estate, to be defeated by a subsequent *sale* to a *purchaser*, even with notice (*i*). And the *cestui que trust* can neither

545, *per* M. R.; *Murray v. Stair*, 2 Barn. & Cr. 82; *Nash v. Flynn*, 1 Jon. & Lat. 162.

(*c*) *Dillwyn v. Llewelyn*, 4 De G. F. & J. 517.

(*d*) *Newton v. Askew*, 11 Beav. 145; *Rycroft v. Christy*, 3 Beav. 238.

(*e*) *Ellison v. Ellison*, 6 Ves. 656; *Smith v. Lyne*, 2 Y. & C. 345; *Pater-son v. Murphy*, 11 Hare, 88.

(*f*) *Markwell v. Markwell*, 34 Beav. 12.

(*g*) *Huguenin v. Baseley*, 14 Ves. 273.

(*h*) See *Forshaw v. Welsby*, 30 Beav. 243; *Nanney v. Williams*, 22 Beav. 452; *Bindley v. Mulloney*, 7 L. R. Eq. 343.

(*i*) In *Price v. Jenkins*, 5 Ch. Div. 619, it was held that a settlement of